IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF GEORGIA
ATLANTA DIVISION

WE GOT U LLC, Plaintiff, v. GARRY LEONARD, DIANA LEONARD, LEONARD CONSULTING, LLC, and FSELL MARKETING, LLC, Defendants.	Civil Action No.: 26-cv-03474-VMC JURY TRIAL DEMANDED

PLAINTIFF/COUNTERCLAIM DEFENDANT WE GOT U LLC'S ANSWER AND AFFIRMATIVE DEFENSES TO DEFENDANTS/COUNTERCLAIM PLAINTIFFS GARRY LEONARD AND DIANA LEONARD'S COUNTERCLAIM

Counterclaim Defendant WE GOT U LLC ("WGU"), by and through its undersigned counsel, hereby files its answer to the Counterclaim filed by Defendants/Counterclaim Plaintiffs GARRY LEONARD and DIANA LEONARD (collectively, "Defendants/Counterclaim Plaintiffs"), and answers each of the correspondingly numbered paragraphs contained therein as follows:

Parties, Jurisdiction, and General Allegations

1. WGU states that this allegation purports to incorporate by reference Defendants/Counterclaim Plaintiffs' own responses and affirmative defenses to the

Complaint, which are their own pleadings and not factual averments directed at WGU, and therefore no response is required. To the extent a response is deemed required, the allegations are denied.

2. Admitted for jurisdictional purposes only. Denied that Defendants/Counterclaim Plaintiffs are entitled to any relief.

3. Admitted.

4. WGU states that the Memorandum of Understanding ("MOU") is a written instrument that speaks for itself and is the best evidence of its terms. To the extent this allegation purports to characterize, interpret, or describe the MOU, including the allegation that it was intended "solely" to define a profit-sharing arrangement, those characterizations are denied. WGU denies any allegation inconsistent with the actual terms of the MOU.

5. WGU admits that it filed a Complaint against Defendants/Counterclaim Plaintiffs asserting claims including misappropriation of trade secrets and related claims, and states that the Complaint speaks for itself and is the best evidence of its contents and the claims and theories asserted therein. To the extent the allegations in this paragraph purport to characterize, paraphrase, or summarize the Complaint, WGU refers to the Complaint for its full and complete contents and denies any allegation inconsistent therewith.

6. Denied.

7. Denied.

8. Denied.

9. Denied.

10. WGU admits only that it maintains its own books and records and operates its own accounts in the ordinary course of business. WGU denies that any amounts are due to Garry Leonard under the MOU, the parties' course of dealing, or otherwise, and on that basis denies that its records are "necessary to determine the amounts due to Garry Leonard" as alleged. The allegations that WGU's funds, receipts, and transactions were maintained in a manner that prevents Garry Leonard from independently determining any amounts due, and that any such amounts cannot be determined through regular discovery, state legal conclusions to which no response is required; to the extent a response is required, they are denied. WGU denies each remaining allegation of Paragraph 10.

11. Denied.

12. Denied.

Count I – Breach of Contract
(Against WGU by Garry Leonard)

13. WGU repeats, realleges, and incorporates by reference its responses to the preceding paragraphs as if fully set forth herein.

14. WGU admits that the MOU is a valid and enforceable written agreement according to its terms. WGU denies Leonard's characterization of the MOU in Paragraph 14 to the extent it purports to describe the nature, scope, or legal effect of the MOU in a manner inconsistent with its actual terms, and states that the MOU is the best evidence of its terms. WGU denies each remaining allegation of Paragraph 14.

15. Denied.

16. Denied.

17. Denied.

18. Denied.

Count II – Breach of Contract
(Against WGU by Diana Leonard)

19. WGU repeats, realleges, and incorporates by reference its responses to the preceding paragraphs as if fully set forth herein.

20. WGU admits that Diana Leonard executed Exhibit B to WGU's Complaint on or about October 3, 2025, and that Exhibit B sets forth Diana Leonard's terms of her work with WGU as its Director of Client Services. WGU states that the document speaks for itself and is the best evidence of its terms. WGU denies each remaining allegation of Paragraph 20.

21. Denied.

22. Denied.

23. Denied.

Count III – Quantum Meruit / Unjust Enrichment
(Against WGU by Garry Leonard and Diana Leonard)

24. WGU repeats, realleges, and incorporates by reference its responses to the preceding paragraphs as if fully set forth herein.

25. Denied.

26. Denied.

27. Denied.

28. Denied.

29. Denied.

Count IV – Equitable Accounting
(Against WGU by Garry Leonard)

25. WGU repeats, realleges, and incorporates by reference its responses to the preceding paragraphs as if fully set forth herein.[1]

26. Denied.

27. Denied.

28. Denied.

[1] The Counterclaim's numbering is not sequential: paragraph 25 is repeated, appearing again after paragraph 29. This Answer follows the Counterclaim's numbering.

29. Denied.

Count V – Attorneys' Fees, Costs, and Expenses
(Against WGU by Counterclaim Plaintiffs)

30. WGU repeats, realleges, and incorporates by reference its responses to the preceding paragraphs as if fully set forth herein.

31. WGU states that Paragraph 31 asserts legal conclusions regarding entitlement to attorneys' fees and expenses under O.C.G.A. § 13-6-11, to which no response is required. To the extent a response is required, WGU denies that Defendants/Counterclaim Plaintiffs are entitled to attorneys' fees, expenses of litigation, or any other relief under O.C.G.A. § 13-6-11 or otherwise, and denies the remaining allegations of Paragraph 31.

32. Denied.

Prayer for Relief

WGU denies that Defendants/Counterclaim Plaintiffs are entitled to the relief requested in the "Prayer for Relief," including subparagraphs A through G, or to any relief whatsoever, and denies each and every allegation contained therein. WGU specifically denies that Defendants/Counterclaim Plaintiffs are entitled to a judgment in their favor on the counterclaims, to any compensatory damages, to an accounting, or to pre-judgment or post-judgment interest, costs, or attorneys' fees.

GENERAL DENIAL

WGU denies each and every allegation in Defendants/Counterclaim Plaintiffs' Counterclaim that is not expressly and unequivocally admitted in the answer above.

PLAINTIFF/COUNTERCLAIM DEFENDANT WE GOT U LLC'S AFFIRMATIVE DEFENSES TO COUNTERCLAIM

WGU hereby asserts the following affirmative defenses to Defendants/Counterclaim Plaintiffs' Counterclaim:

FIRST AFFIRMATIVE DEFENSE – PRIOR MATERIAL BREACH

The Counterclaims are barred, in whole or in part, because Defendants/Counterclaim Plaintiffs materially breached their obligations to WGU before any performance became due from WGU, including by misappropriating WGU's trade secrets and confidential information, diverting WGU's clients and business, and breaching their contractual and fiduciary duties of loyalty. Because Defendants/Counterclaim Plaintiffs were the first to materially breach their contractual and other obligations, as set forth in the MOU, the job description contained in Exhibit B to the Complaint, and the parties' relationship and course of dealing, their breaches excused any further performance by WGU and bar recovery of the damages sought in Counts I through III of the Counterclaim.

SECOND AFFIRMATIVE DEFENSE – FORFEITURE BY REASON OF BREACH OF THE DUTY OF LOYALTY

The Counterclaims seeking compensation are barred, in whole or in part, by the doctrine of forfeiture. Defendants/Counterclaim Plaintiffs served WGU as agents owing a duty of undivided loyalty. By competing against WGU, diverting its clients and business opportunities, and misusing its confidential information during the period of their engagement, Defendants/Counterclaim Plaintiffs breached that duty and thereby forfeited any right to compensation or the value of services claimed to have been earned during the period of their disloyalty, as alleged in Counts I, II, and III.

THIRD AFFIRMATIVE DEFENSE – SETOFF AND RECOUPMENT

Any amounts Defendants/Counterclaim Plaintiffs might otherwise be owed, which WGU denies, are subject to setoff and recoupment against the damages WGU sustained as a result of the conduct alleged in the Complaint. WGU's recoupment arises out of the same transactions and occurrences as the Counterclaims. Because WGU's damages equal or exceed any amount Defendants/Counterclaim Plaintiffs could establish, Defendants/Counterclaim Plaintiffs are entitled to recover nothing.

FOURTH AFFIRMATIVE DEFENSE – UNCLEAN HANDS

Defendants/Counterclaim Plaintiffs' equitable claims for quantum meruit and unjust enrichment (Count III) and for an equitable accounting (Count IV) are barred

by the doctrine of unclean hands. Those claims arise out of Defendants/Counterclaim Plaintiffs' own inequitable conduct, including their misappropriation of WGU's trade secrets and confidential information, diversion of WGU's clients, and breach of their duties of loyalty. Having engaged in such conduct in connection with the very subject matter of their claims, Defendants/Counterclaim Plaintiffs may not obtain any equitable relief.

FIFTH AFFIRMATIVE DEFENSE – ADEQUATE REMEDY AT LAW

Count IV for an equitable accounting is barred because Defendants/Counterclaim Plaintiffs have an adequate remedy at law. Garry Leonard asserts a legal claim for breach of contract seeking the same compensation (Count I), and the books, records, receipts, invoices, and account-level information he seeks are obtainable through ordinary discovery. The relationship between the parties is contractual and does not give rise to the fiduciary or complex mutual-account relationship required to support an accounting in equity.

SIXTH AFFIRMATIVE DEFENSE – EXPRESS CONTRACT

Count III for quantum meruit and unjust enrichment is barred to the extent an express, enforceable contract governs the subject matter of the claim. The MOU is a valid, enforceable contract entered into by Garry Leonard and WGU. Moreover, Diana Leonard asserts a breach of contract claim based upon the job description

contained in Exhibit B to the Complaint. Where an express contract governs the subject matter, the equitable claims asserted by Defendants/Counterclaim Plaintiffs fail.

SEVENTH AFFIRMATIVE DEFENSE – WAIVER

The Counterclaims are barred, in whole or in part, by waiver. Through their own conduct, representations, and course of dealing, including their acceptance of the compensation arrangements actually provided and their conduct in competing with and diverting business from WGU, Defendants/Counterclaim Plaintiffs voluntarily and intentionally relinquished any right to the additional compensation, profit-sharing, or equitable relief they now seek.

EIGHTH AFFIRMATIVE DEFENSE – ESTOPPEL

The Counterclaims are barred, in whole or in part, by the doctrine of estoppel. Defendants/Counterclaim Plaintiffs made representations and engaged in conduct concerning their compensation, their performance, and their relationship with WGU on which WGU reasonably and detrimentally relied. Defendants/Counterclaim Plaintiffs are estopped from asserting positions contrary to those representations and that conduct in order to recover the amounts and relief they now seek.

JURY TRIAL

Plaintiff/Counterclaim Defendant WE GOT U LLC demands a trial by jury on all issues so triable.

Dated: August 7, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned certifies that this Certificate of Service has been served on counsel of record via the Court's CM/ECF system on this 7th day of August 2026.

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